



ARIZONA HOUSE OF REPRESENTATIVES FLOOR AMENDMENT EXPLANATION

57th Legislature, 2nd Regular Session

Majority Research Staff

HB 2417: excessive speed; speed inhibiting device

NGUYEN FLOOR AMENDMENT

1. Adds employer-owned vehicles operated during the course of employment by a person with a limited driving privilege to the list of vehicles that are exempt from the section.

NGUYEN FLOOR AMENDMENT
HOUSE OF REPRESENTATIVES AMENDMENTS TO H.B. 2417
(Reference to printed bill)

Amendment instruction key:

[GREEN UNDERLINING IN BRACKETS] indicates text added to statute or previously enacted session law.

[Green underlining in brackets] indicates text added to new session law or text restoring existing law.

[~~GREEN STRIKEOUT IN BRACKETS~~] indicates new text removed from statute or previously enacted session law.

[~~Green strikeout in brackets~~] indicates text removed from existing statute, previously enacted session law or new session law.

<<Green carets>> indicate a section added to the bill.

<<~~Green strikeout in carets~~>> indicates a section removed from the bill.

1 The bill as proposed to be amended is reprinted as follows:

2 Section 1. Title 28, chapter 3, article 6, Arizona Revised
3 Statutes, is amended by adding section 28-711, to read:

4 28-711. Use of speed inhibiting device; proof of compliance;
5 installation; violations; classification; rules;
6 definitions

7 A. IF A PERSON'S LICENSE OR NONRESIDENT OPERATING PRIVILEGE IS
8 SUSPENDED OR REVOKED FOR A VIOLATION DESCRIBED IN THIS SUBSECTION, EXCEPT
9 FOR A NOTICE OF VIOLATION THAT WAS OBTAINED BY USING A PHOTO ENFORCEMENT
10 SYSTEM, IN LIEU OF THE SUSPENSION OR REVOCATION AND ON REQUEST OF THE
11 PERSON, THE COURT MAY ORDER THAT THE DEPARTMENT REQUIRE THE INSTALLATION
12 OF A SPEED INHIBITING DEVICE ON ANY MOTOR VEHICLE THE PERSON OPERATES IN
13 ADDITION TO ANY OTHER PENALTY PRESCRIBED BY LAW, INCLUDING DEFENSIVE
14 DRIVING SCHOOL PURSUANT TO CHAPTER 8, ARTICLE 7 OF THIS TITLE OR TRAFFIC
15 SURVIVAL SCHOOL PURSUANT TO CHAPTER 8, ARTICLE 7.1 OF THIS TITLE. IF THE
16 LICENSE OF A PERSON IS SUSPENDED OR REVOKED PURSUANT TO THIS SECTION WHILE
17 THE PERSON WAS OPERATING A MOTORCYCLE OR OFF-HIGHWAY VEHICLE, THE PERSON
18 IS ELIGIBLE FOR USE OF A SPEED INHIBITING DEVICE ONLY ON A MOTOR VEHICLE.
19 ON RECEIPT OF AN ORDER FROM THE COURT, THE DEPARTMENT SHALL REQUIRE A
20 SPEED INHIBITING DEVICE TO BE INSTALLED ON ANY MOTOR VEHICLE A PERSON
21 OPERATES FOR A PERIOD THAT IS EQUIVALENT TO THE LENGTH OF THE SUSPENSION
22 OR REVOCATION OF THE PERSON'S LICENSE OR NONRESIDENT OPERATING PRIVILEGE
23 THAT WOULD HAVE OTHERWISE BEEN IMPOSED FOR THE FOLLOWING IF THE PERSON:

24 1. IS CONVICTED OF A FIRST VIOLATION OF SECTION 28-693, 28-695 OR
25 28-708 AND A SUSPENSION OR REVOCATION OF THE PERSON'S LICENSE OR
26 NONRESIDENT OPERATING PRIVILEGE IS REQUIRED.

27 2. HAS ASSESSED POINTS AGAINST THE PERSON'S DRIVING RECORD THAT
28 WOULD REQUIRE A ONE-YEAR SUSPENSION OF THE PERSON'S LICENSE OR NONRESIDENT

1 OPERATING PRIVILEGE FOR ACCUMULATING EXCESSIVE POINTS PURSUANT TO RULES
2 ADOPTED BY THE DEPARTMENT.

3 3. IS CONVICTED OF A SECOND VIOLATION OF SECTION 28-693, 28-695 OR
4 28-708 WITHIN A TWENTY-FOUR MONTH PERIOD. A PERSON WHO IS CONVICTED OF A
5 VIOLATION DESCRIBED IN THIS PARAGRAPH AND WHO IS ORDERED BY THE COURT TO
6 INSTALL A SPEED INHIBITING DEVICE PURSUANT TO THIS SECTION IS NOT SUBJECT
7 TO ANY MINIMUM SUSPENSION OF A LICENSE OR NONRESIDENT OPERATING PRIVILEGE.

8 4. IS A MINOR AND THE OFFENSE IS THE MINOR'S FIRST EXCESSIVE
9 SPEEDING OFFENSE PURSUANT TO SECTION 28-701.02.

10 B. IF A PERSON IS REQUIRED TO INSTALL A SPEED INHIBITING DEVICE
11 PURSUANT TO THIS SECTION, THE PERSON SHALL PAY THE COST FOR INSTALLING AND
12 MAINTAINING THE SPEED INHIBITING DEVICE. THE DEPARTMENT MAY CHARGE A FEE
13 FOR INSTALLATION.

14 C. THE MANUFACTURER OR PROVIDER OF A SPEED INHIBITING DEVICE SHALL
15 ELECTRONICALLY PROVIDE TO THE DEPARTMENT PROOF OF INSTALLATION BY THE
16 PERSON WHOSE DRIVING PRIVILEGE IS LIMITED PURSUANT TO THIS SECTION IN THE
17 MANNER AND FORMAT PRESCRIBED BY THE DEPARTMENT BY RULE, AND THE DEPARTMENT
18 SHALL REJECT ANY INFORMATION THAT DOES NOT MEET THESE REQUIREMENTS,
19 INCLUDING PROOF OF:

20 1. THE INSTALLATION OF A FUNCTIONING SPEED INHIBITING DEVICE IN
21 EACH MOTOR VEHICLE THAT IS OPERATED BY THE PERSON.

22 2. COMPLIANCE BY THE PERSON OF AT LEAST ONCE EVERY NINETY DAYS
23 DURING THE PERIOD THE PERSON IS ORDERED TO USE A SPEED INHIBITING DEVICE.

24 3. ANY TAMPERING OR CIRCUMVENTION OF THE SPEED INHIBITING DEVICE.

25 4. THE REMOVAL OF THE SPEED INHIBITING DEVICE FROM ANY MOTOR
26 VEHICLE THAT IS OPERATED BY THE PERSON.

27 5. A COPY OF THE NOTIFICATION PROVIDED TO THE PERSON THAT THE
28 PERSON HAS COMPLETED THE TERM REQUIRING THE INSTALLATION OF THE SPEED
29 INHIBITING DEVICE.

30 6. ANY OTHER COMMUNICATIONS DETERMINED NECESSARY BY THE DEPARTMENT.

31 D. THE DEPARTMENT MAY NOT REINSTATE THE PERSON'S LICENSE OR
32 NONRESIDENT OPERATING PRIVILEGE UNTIL THE PERSON HAS INSTALLED A
33 FUNCTIONING SPEED INHIBITING DEVICE IN EACH MOTOR VEHICLE THAT IS OPERATED
34 BY THE PERSON AND THE MANUFACTURER OR PROVIDER OF THE SPEED INHIBITING
35 DEVICE HAS PROVIDED PROOF OF INSTALLATION TO THE DEPARTMENT.

36 E. IF THE MANUFACTURER OR PROVIDER OF THE SPEED INHIBITING DEVICE
37 DOES NOT SUBMIT PROOF OF COMPLIANCE BY THE PERSON WHOSE DRIVING PRIVILEGE
38 IS LIMITED PURSUANT TO THIS SECTION, THE DEPARTMENT SHALL SUSPEND THE
39 PERSON'S LICENSE OR NONRESIDENT OPERATING PRIVILEGE UNTIL PROOF OF
40 COMPLIANCE IS SUBMITTED TO THE DEPARTMENT. ON NOTIFICATION OF
41 NONCOMPLIANCE FROM THE COURT, THE DEPARTMENT SHALL IMMEDIATELY SUSPEND THE
42 PERSON'S LICENSE OR NONRESIDENT OPERATING PRIVILEGE.

43 F. A PERSON WHOSE DRIVER LICENSE IS SUSPENDED PURSUANT TO THIS
44 SECTION MAY SUBMIT A WRITTEN REQUEST FOR A HEARING. THE WRITTEN REQUEST
45 MUST BE RECEIVED BY THE DEPARTMENT WITHIN FIFTEEN DAYS AFTER THE DATE OF
46 THE ORDER OF SUSPENSION. ON RECEIPT OF A REQUEST FOR A HEARING, A HEARING
47 SHALL BE HELD WITHIN THIRTY DAYS. A TIMELY REQUEST FOR A HEARING STAYS

1 THE SUSPENSION UNTIL A HEARING IS HELD, EXCEPT THAT THE DEPARTMENT MAY NOT
2 RETURN ANY SURRENDERED DRIVER LICENSE OR PERMIT TO THE PERSON BUT MAY
3 ISSUE A TEMPORARY DRIVER LICENSE OR PERMIT TO DRIVE THAT EXPIRES NOT LATER
4 THAN WHEN THE DEPARTMENT HAS MADE ITS FINAL DECISION. HEARINGS REQUESTED
5 PURSUANT TO THIS SUBSECTION SHALL BE CONDUCTED IN THE SAME MANNER AND
6 UNDER THE SAME CONDITIONS AS PROVIDED IN SECTION 28-3306, AND THE SCOPE OF
7 THE HEARING SHALL INCLUDE ONLY THE FOLLOWING ISSUES:

8 1. WHETHER THE PERSON WAS ORDERED OR REQUIRED TO EQUIP A MOTOR
9 VEHICLE THAT IS OPERATED BY THE PERSON WITH A SPEED INHIBITING DEVICE
10 PURSUANT TO THIS SECTION.

11 2. WHETHER THE MANUFACTURER OR PROVIDER OF THE SPEED INHIBITING
12 DEVICE PROVIDED PROOF OF COMPLIANCE PURSUANT TO THIS SECTION.

13 G. IF A PERSON IS REQUIRED TO INSTALL A SPEED INHIBITING DEVICE
14 PURSUANT TO THIS SECTION AND THE PERSON IS FOUND TO BE OPERATING A MOTOR
15 VEHICLE WITHOUT A SPEED INHIBITING DEVICE INSTALLED EXCEPT AS PROVIDED IN
16 SUBSECTION I OF THIS SECTION, THE PERSON IS GUILTY OF A CLASS 1
17 MISDEMEANOR. ON NOTIFICATION FROM THE COURT, THE DEPARTMENT SHALL
18 IMMEDIATELY SUSPEND THE PERSON'S LICENSE OR NONRESIDENT OPERATING
19 PRIVILEGE. THE DURATION OF THE SUSPENSION OF THE LICENSE OR NONRESIDENT
20 OPERATING PRIVILEGE MUST BE THE LENGTH OF THE ORIGINAL SENTENCE, AND NO
21 TIME MAY BE CREDITED TO THE ORIGINAL LENGTH OF SUSPENSION.

22 H. AFTER CONSULTING WITH THE DIRECTOR OF THE DEPARTMENT OF PUBLIC
23 SAFETY, THE ASSISTANT DIRECTOR FOR THE MOTOR VEHICLE DIVISION OF THE
24 DEPARTMENT OF TRANSPORTATION SHALL:

25 1. ADOPT RULES PRESCRIBING THE REQUIREMENTS FOR A SPEED INHIBITING
26 DEVICE. THE RULES MUST INCLUDE:

27 (a) THE PROCEDURE FOR CERTIFYING SPEED INHIBITING DEVICES.

28 (b) PROVISIONS TO ENSURE THE RELIABILITY OF THE SPEED INHIBITING
29 DEVICE OVER THE RANGE OF MOTOR VEHICLE ENVIRONMENTS.

30 (c) PROVISIONS TO ENSURE THE SPEED INHIBITING DEVICE WORKS
31 ACCURATELY IN AN UNSUPERVISED ENVIRONMENT.

32 (d) THE PROCEDURE FOR DECERTIFYING A SPEED INHIBITING DEVICE FOR
33 CAUSE.

34 (e) THE PROCEDURE TO ENSURE A PERSON INSTALLS A SPEED INHIBITING
35 DEVICE ON ANY MOTOR VEHICLE OPERATED BY THE PERSON WITHIN TWENTY DAYS IF
36 THE ORIGINAL MOTOR VEHICLE WITH A SPEED INHIBITING DEVICE INSTALLED IS
37 SOLD, LOST, STOLEN, WRECKED OR SCRAPPED.

38 (f) THE PROCEDURES AND HEARING RIGHTS FOR THE DEPARTMENT TO APPROVE
39 EARLY REMOVAL, REINSTALLATION OR OPT OUT BY THE PERSON FOR THE SPEED
40 INHIBITING DEVICE IF THE PERSON NO LONGER POSSESSES A MOTOR VEHICLE OR IS
41 NO LONGER ABLE TO FINISH THE REQUIRED TIME FRAME FOR THE INSTALLATION OF
42 THE SPEED INHIBITING DEVICE.

43 (g) THE PROCEDURES FOR COMPLIANCE REPORTING RELATING TO TAMPERING
44 WITH AND CIRCUMVENTION OF SPEED INHIBITING DEVICES.

45 2. CERTIFY SPEED INHIBITING DEVICES. ANY SPEED INHIBITING DEVICE
46 MAY NOT BE CERTIFIED UNTIL:

1 (a) THE SPEED INHIBITING DEVICE IS MADE BY A MANUFACTURER THAT IS
2 COVERED BY PRODUCT LIABILITY INSURANCE IN THE AMOUNT OF \$1,000,000 PER
3 EVENT AND \$3,000,000 IN AGGREGATE.

4 (b) THE MANUFACTURER OF THE SPEED INHIBITING DEVICE INDEMNIFIES
5 THIS STATE AGAINST ANY LIABILITY THAT MAY RESULT FROM THE USE OF THE SPEED
6 INHIBITING DEVICE.

7 (c) THE SPEED INHIBITING DEVICE IS REPAIRED OR MODIFIED ONLY BY THE
8 MANUFACTURER OF THE SPEED INHIBITING DEVICE.

9 (d) ALL OF THE SPEED INHIBITING DEVICE REPORTING REQUIRED BY THIS
10 SECTION ORIGINATES FROM THE SPEED INHIBITING DEVICE MANUFACTURER.

11 (e) THE SPEED INHIBITING DEVICE INCLUDES AN OVERRIDE FEATURE TO BE
12 USED BY THE PERSON. THE OVERRIDE FEATURE MUST:

13 (i) BE AVAILABLE NOT MORE THAN THREE TIMES DURING A THIRTY-DAY
14 PERIOD.

15 (ii) ALLOW THE MOTOR VEHICLE TO EXCEED THE POSTED SPEED LIMIT BY
16 NOT MORE THAN TEN MILES FOR A PERIOD NOT TO EXCEED SIXTY SECONDS.

17 3. PUBLISH A LIST OF SPEED INHIBITING DEVICES THAT INCLUDES
18 INFORMATION ABOUT THE MANUFACTURERS OF THE SPEED INHIBITING DEVICES AND
19 WHERE THE SPEED INHIBITING DEVICES MAY BE ORDERED.

20 4. MAKE THE LIST AVAILABLE TO THE COURTS AND PROBATION DEPARTMENTS
21 WITHOUT CHARGE.

22 5. ESTABLISH STANDARDS AND QUALIFICATIONS FOR TECHNICIANS.

23 6. ADOPT A WARNING LABEL DESIGN TO BE AFFIXED TO EACH SPEED
24 INHIBITING DEVICE ON INSTALLATION. THE LABEL MUST CONTAIN A WARNING THAT
25 A PERSON TAMPERING WITH, CIRCUMVENTING OR OTHERWISE MISUSING THE SPEED
26 INHIBITING DEVICE IS GUILTY OF A CLASS 1 MISDEMEANOR.

27 7. ADOPT RULES THAT ALLOW THE DIRECTOR TO IMPOSE A CIVIL PENALTY
28 AGAINST A MANUFACTURER OF A SPEED INHIBITING DEVICE THAT FAILS TO PROPERLY
29 REPORT DATA TO THE DIRECTOR IN THE MANNER PRESCRIBED BY THE DIRECTOR.

30 I. EXCEPT IN CASES OF SUBSTANTIAL EMERGENCY, A PERSON MAY NOT
31 KNOWINGLY RENT, LEASE OR LEND A MOTOR VEHICLE TO A PERSON WHOSE DRIVING
32 PRIVILEGE IS LIMITED PURSUANT TO THIS SECTION UNLESS THE MOTOR VEHICLE IS
33 EQUIPPED WITH A FUNCTIONING SPEED INHIBITING DEVICE.

34 J. A PERSON WHOSE DRIVING PRIVILEGE IS LIMITED PURSUANT TO THIS
35 SECTION AND WHO RENTS, LEASES OR BORROWS A MOTOR VEHICLE FROM ANOTHER
36 PERSON SHALL NOTIFY THE PERSON WHO RENTS, LEASES OR LENDS THE MOTOR
37 VEHICLE TO THE PERSON THAT THE PERSON HAS SPECIFIC REQUIREMENTS FOR THE
38 OPERATION OF THE MOTOR VEHICLE AND THE NATURE OF THE REQUIREMENTS.

39 K. A MOTOR VEHICLE MANUFACTURER, DISTRIBUTOR OR RETAILER IS NOT
40 LIABLE FOR ANY LOSS, INJURY OR DAMAGE CAUSED BY THE DESIGN, MANUFACTURER,
41 INSTALLATION, INCLUDING IMPROPER INSTALLATION OR USE OR MISUSE OF A SPEED
42 INHIBITING DEVICE, UNLESS THE MOTOR VEHICLE MANUFACTURER, DISTRIBUTOR OR
43 RETAILER KNOWINGLY ENGAGES IN A REPAIR OR UPDATE TO THE SPEED INHIBITING
44 DEVICE AND THE REPAIR OR UPDATE IS THE PROXIMATE CAUSE OF ANY LOSS, INJURY
45 OR DAMAGE.

1 L. THE MANUFACTURER OF A SPEED INHIBITING DEVICE SHALL COLLECT ONLY
2 NECESSARY DATA TO SUPPORT COMPLIANCE, EVALUATE PROGRAM PERFORMANCE AND
3 IMPROVE SYSTEM ACCURACY AND EFFECTIVENESS. THE DATA COLLECTION MUST:

4 1. MINIMIZE STORAGE OF LOCATION DATA.

5 2. BE SHARED UNDER THE FOLLOWING CIRCUMSTANCES:

6 (a) WHEN DIRECTED BY A VALID COURT ORDER.

7 (b) AS DIRECTED BY LAW OR RULE.

8 (c) WITH THE DEPARTMENT OR JUDGE RELATED TO ANY VIOLATION OF THIS
9 SECTION.

10 (d) WHEN DEPERSONALIZED OR AGGREGATED FOR RESEARCH OR EVALUATION
11 PURPOSES.

12 3. NEVER BE SOLD, LICENSED OR USED FOR ANY COMMERCIAL PURPOSES.

13 M. THIS SECTION DOES NOT:

14 1. APPLY TO FLEET VEHICLES OPERATED BY A PERSON WHOSE DRIVING
15 PRIVILEGE IS LIMITED PURSUANT TO THIS SECTION.

16 [2. APPLY TO VEHICLES THAT ARE OWNED BY A PERSON'S EMPLOYER AND
17 THAT ARE OPERATED IN IN THE COURSE OF EMPLOYMENT BY A PERSON WHOSE DRIVING
18 PRIVILEGE IS LIMITED PURSUANT TO THIS SECTION.]

19 ~~[2.]~~ [3.] APPLY TO COMMERCIAL VEHICLES AS DEFINED IN SECTION
20 28-2231.

21 ~~[3.]~~ [4.] REQUIRE A MOTOR VEHICLE MANUFACTURER, DISTRIBUTOR OR
22 RETAILER TO MANUFACTURE, DISTRIBUTE OR OFFER FOR SALE A MOTOR VEHICLE THAT
23 INCLUDES OR IS COMPATIBLE WITH A SPEED INHIBITING DEVICE.

24 ~~[4.]~~ [5.] PROHIBIT A LESSOR OR LIENHOLDER FROM REQUIRING
25 NOTIFICATION BY THE PERSON THAT A SPEED INHIBITING DEVICE HAS BEEN
26 INSTALLED ON A MOTOR VEHICLE SUBJECT TO A LEASE OR FINANCE AGREEMENT.

27 ~~[5.]~~ [6.] PROHIBIT A LESSOR OR LIENHOLDER FROM CHARGING A
28 REASONABLE FEE TO THE CUSTOMER FOR THE REMOVAL OF A SPEED INHIBITING
29 DEVICE.

30 ~~[6.]~~ [7.] APPLY TO A MOTORCYCLE OR OFF-HIGHWAY VEHICLE OPERATED BY
31 A PERSON WHOSE DRIVING PRIVILEGE IS LIMITED PURSUANT TO THIS SECTION.

32 N. FOR THE PURPOSES OF THIS SECTION:

33 1. "SPEED INHIBITING DEVICE" MEANS AN INTEGRATED MOTOR VEHICLE
34 SYSTEM THAT DETERMINES THE POSTED SPEED LIMIT OF THE ROADWAY THE MOTOR
35 VEHICLE IS ON AND THAT PREVENTS THE MOTOR VEHICLE'S SPEED FROM EXCEEDING
36 THE POSTED SPEED LIMIT.

37 2. "SUBSTANTIAL EMERGENCY" MEANS AN EMERGENCY SITUATION DURING
38 WHICH A PERSON OTHER THAN THE PERSON WHOSE DRIVING PRIVILEGE IS LIMITED
39 PURSUANT TO THIS SECTION IS NOT REASONABLY AVAILABLE TO DRIVE IN RESPONSE
40 TO THAT EMERGENCY SITUATION.

41 Sec. 2. Section 28-3318, Arizona Revised Statutes, is amended to
42 read:

43 28-3318. Service of notice; definitions

44 A. The department shall provide written, electronic or digital
45 notice to a person possessing a driver license, to an unlicensed driver or
46 to a nonresident driver of the following:

1 1. A suspension, revocation, cancellation, ~~OR~~ OR disqualification OR
2 A SPEED INHIBITING DEVICE or certified ignition interlock device
3 limitation of the license or privilege to operate a motor vehicle.

4 2. Required attendance at training and education sessions.

5 B. The department may include additional information in the
6 written, electronic or digital notice developed in consultation with the
7 director of the department of public safety as prescribed in section
8 28-1462 regarding certified ignition interlock devices.

9 C. The department shall send the notice by mail or electronically
10 or digitally to the address provided to the department on the licensee's
11 application or provided to the department pursuant to section 28-448. If
12 an address has not been provided to the department as provided in this
13 subsection, the department shall send the notice to any address known to
14 the department, including the address listed on a traffic citation
15 received by the department.

16 D. Service of the notice provided by this section is complete on
17 mailing. The department shall provide further service of notice only if
18 the department is notified of a change of address pursuant to section
19 28-448.

20 E. Compliance with the mailing provisions of this section
21 constitutes notice of the suspension, revocation, cancellation,
22 disqualification or certified ignition interlock device limitation for
23 purposes of prosecution under section 28-1383, 28-1464 or 28-3473. The
24 state is not required to prove actual receipt of the notice or actual
25 knowledge of the suspension, revocation, cancellation, disqualification or
26 certified ignition interlock device limitation.

27 F. Compliance with the mailing provisions of this section
28 constitutes notice of suspension or restriction for the purposes of
29 suspension or restriction under section 28-3320. The state is not
30 required to prove actual receipt of the notice or actual knowledge of the
31 suspension or restriction.

32 G. For the purposes of this section:

33 1. "Certified ignition interlock device" has the same meaning
34 prescribed in section 28-1301.

35 2. "Mail" or "mailing" means delivery by first class or certified
36 mail or through a department electronic or digital system.

37 3. "SPEED INHIBITING DEVICE" HAS THE SAME MEANING PRESCRIBED IN
38 SECTION 28-711.

39 Sec. 3. Section 28-3511, Arizona Revised Statutes, is amended to
40 read:

41 28-3511. Removal and immobilization or impoundment of
42 vehicle; Arizona crime information center database

43 A. A peace officer shall cause the removal and either
44 immobilization or impoundment of a vehicle if the peace officer determines
45 that:

46 1. A person is driving the vehicle while any of the following
47 applies:

1 (a) Except as otherwise provided in this subdivision, the person's
2 driving privilege is revoked for any reason. A peace officer shall not
3 cause the removal and either immobilization or impoundment of a vehicle
4 pursuant to this subdivision if the person's privilege to drive is valid
5 in this state.

6 (b) The person has ~~not ever~~ NEVER been issued a valid driver
7 license or permit by this state and the person does not produce evidence
8 of ever having a valid driver license or permit issued by another
9 jurisdiction. This subdivision does not apply to the operation of an
10 implement of husbandry.

11 (c) The person is subject to an ignition interlock device
12 requirement pursuant to chapter 4 of this title OR A SPEED INHIBITING
13 DEVICE PURSUANT TO SECTION 28-711 and the person is operating a vehicle
14 without a functioning certified ignition interlock device OR A SPEED
15 INHIBITING DEVICE. This subdivision does not apply to the operation of a
16 vehicle due to a substantial emergency as defined in section 28-1464.

17 (d) In furtherance of the illegal presence of an alien in the
18 United States and in violation of a criminal offense, the person is
19 transporting or moving or attempting to transport or move an alien in this
20 state in a vehicle if the person knows or recklessly disregards the fact
21 that the alien has come to, has entered or remains in the United States in
22 violation of law.

23 (e) The person is concealing, harboring or shielding or attempting
24 to conceal, harbor or shield from detection an alien in this state in a
25 vehicle if the person knows or recklessly disregards the fact that the
26 alien has come to, entered or remains in the United States in violation of
27 law.

28 2. A person is driving ~~a~~ THE vehicle in violation of section
29 28-693 and the peace officer reasonably believes that allowing the person
30 to continue driving the vehicle would expose other persons to the risk of
31 serious bodily injury or death.

32 3. A person is driving ~~a~~ THE vehicle in violation of section
33 28-708 and the peace officer reasonably believes that allowing the person
34 to continue driving the vehicle would expose other persons to the risk of
35 serious bodily injury or death.

36 4. A person is obstructing a highway or other public thoroughfare
37 in violation of section 13-2906 and the peace officer reasonably believes
38 that allowing the person to continue driving the vehicle would expose
39 other persons to the risk of serious bodily injury or death.

40 5. The vehicle is displayed for sale or for transfer of ownership
41 with a vehicle identification number that has been destroyed, removed,
42 covered, altered or defaced.

43 B. A peace officer shall cause the removal and impoundment of a
44 vehicle if the peace officer determines that a person is driving the
45 vehicle and if all of the following apply:

46 1. The person's driving privilege is canceled or revoked for any
47 reason or the person has ~~not ever~~ NEVER been issued a driver license or

1 permit by this state and the person does not produce evidence of ever
2 having a driver license or permit issued by another jurisdiction.

3 2. The person is not in compliance with the financial
4 responsibility requirements of chapter 9, article 4 of this title.

5 3. The person is driving a vehicle that is involved in an accident
6 that results in either property damage or injury to or death of another
7 person.

8 C. Except as provided in subsection D of this section, while a
9 peace officer has control of the vehicle the peace officer shall cause the
10 removal and either immobilization or impoundment of the vehicle if the
11 peace officer has probable cause to arrest the driver of the vehicle for a
12 violation of section 4-244, paragraph 34 or section 28-1382 or 28-1383.

13 D. A peace officer shall not cause the removal and either the
14 immobilization or impoundment of a vehicle pursuant to subsection C of
15 this section if all of the following apply:

16 1. The peace officer determines that the vehicle is currently
17 registered and that the driver or the vehicle is in compliance with the
18 financial responsibility requirements of chapter 9, article 4 of this
19 title.

20 2. Another person is with the driver at the time of the arrest.

21 3. The peace officer has reasonable grounds to believe that the
22 other person who is with the driver at the time of the arrest meets all of
23 the following:

24 (a) Has a valid driver license.

25 (b) Is not impaired by intoxicating liquor, any drug, a vapor
26 releasing substance containing a toxic substance or any combination of
27 liquor, drugs or vapor releasing substances.

28 (c) Does not have any spirituous liquor in the person's body if the
29 person is under twenty-one years of age.

30 4. The other person who is with the driver at the time of the
31 arrest notifies the peace officer that the person will drive the vehicle
32 from the place of arrest to the driver's home or other place of safety.

33 5. The other person drives the vehicle as prescribed by paragraph 4
34 of this subsection.

35 E. Except as provided in subsection H of this section and as
36 otherwise provided in this article, a vehicle that is removed and either
37 immobilized or impounded pursuant to subsection A, B or C of this section
38 shall be immobilized or impounded for twenty days. An insurance company
39 does not have a duty to pay any benefits for charges or fees for
40 immobilization or impoundment.

41 F. The owner of a vehicle that is removed and either immobilized or
42 impounded pursuant to subsection A, B or C of this section, the spouse of
43 the owner and each person who has provided the department with indicia of
44 ownership as prescribed in section 28-3514 or other interest in the
45 vehicle that exists immediately before the immobilization or impoundment
46 shall be provided with an opportunity for an immobilization or poststorage
47 hearing pursuant to section 28-3514.

1 G. A law enforcement agency that employs the peace officer who
2 removes and either immobilizes or impounds a vehicle pursuant to this
3 section shall enter information about the removal and either
4 immobilization or impoundment of the vehicle in the Arizona crime
5 information center database within three business days after the removal
6 and either immobilization or impoundment.

7 H. A vehicle that is removed and either immobilized or impounded
8 pursuant to subsection A, paragraph 4 of this section shall be immobilized
9 or impounded for seven days.

10 Sec. 4. Section 28-3512, Arizona Revised Statutes, is amended to
11 read:

12 28-3512. Release of vehicle; civil penalties; definitions

13 A. An immobilizing or impounding agency shall release a vehicle
14 before the end of the immobilization or impoundment period as follows:

15 1. To the registered owner, if the vehicle is a stolen vehicle.

16 2. To the registered owner, if the vehicle is subject to bailment
17 and is driven by an employee of a business establishment, including a
18 parking service or repair garage, who is subject to section 28-3511,
19 subsection A, B or C.

20 3. To the registered owner, if the owner was operating the vehicle
21 at the time of removal and either immobilization or impoundment and
22 presents proof satisfactory to the immobilizing or impounding agency that
23 the owner's driving privilege has been reinstated.

24 4. To the registered owner, if all of the following apply:

25 (a) The owner or the owner's agent was not the person driving the
26 vehicle pursuant to section 28-3511, subsection A.

27 (b) The owner or the owner's agent is in the business of renting
28 motor vehicles without drivers.

29 (c) The vehicle is registered pursuant to section 28-2166.

30 (d) There was a rental agreement in effect at the time of the
31 immobilization or impoundment.

32 5. Except as provided in paragraph 7 of this subsection, to the
33 spouse of the registered owner or any person who is identified as an owner
34 of the vehicle on the records of the department at the time of removal and
35 either immobilization or impoundment, if the spouse or person was not the
36 driver of the vehicle at the time of removal and either immobilization or
37 impoundment and the spouse or person enters into an agreement with the
38 immobilizing or impounding agency that stipulates that if the spouse or
39 person allows a driver who does not have a valid driving privilege or a
40 driver who commits a violation that causes the spouse's or person's
41 vehicle to be removed and either immobilized or impounded pursuant to this
42 article within one year after any agreement is signed by an immobilizing
43 or impounding agency, the spouse or person will not be eligible to obtain
44 release of the spouse's or person's vehicle before the end of the
45 immobilization or impoundment period.

46 6. To the motor vehicle dealer, if the vehicle is owned by a motor
47 vehicle dealer who has paid fees pursuant to section 28-4302 and is driven

1 by a customer, potential customer or employee of the motor vehicle dealer
2 and the motor vehicle dealer has provided to the immobilizing or
3 impounding agency indicia of the motor vehicle dealer's ownership of the
4 vehicle, including a certificate of title or a manufacturer-issued
5 certificate or statement of origin.

6 7. To any person who is identified as an owner of the vehicle on
7 the records of the department at the time of removal and either
8 immobilization or impoundment, if the vehicle is a commercial motor
9 vehicle, a street sweeper or heavy equipment as defined in section 28-854
10 and the person was not the driver of the vehicle at the time of removal
11 and either immobilization or impoundment.

12 B. A vehicle shall not be released pursuant to subsection A of this
13 section except pursuant to an immobilization or a poststorage hearing
14 under section 28-3514 or if all of the following are presented to the
15 immobilizing or impounding agency:

16 1. The owner's or owner's spouse's currently valid driver license
17 issued by this state or the owner's or owner's spouse's state of domicile.

18 2. Proof of current vehicle registration or a valid salvage or
19 dismantle certificate of title.

20 3. Proof that the vehicle is in compliance with the financial
21 responsibility requirements of chapter 9, article 4 of this title.

22 4. If the person is required by the department to install a
23 certified ignition interlock device OR A SPEED INHIBITING DEVICE on the
24 vehicle, proof of installation of a functioning certified ignition
25 interlock device OR A SPEED INHIBITING DEVICE in the vehicle. The
26 impounding agency, storage yard, facility, person or agency having
27 physical possession of the vehicle shall allow access during normal
28 business hours to the impounded vehicle for the purpose of installing a
29 certified ignition interlock device OR A SPEED INHIBITING DEVICE. The
30 impounding agency, storage yard, facility, person or agency having
31 physical possession of the vehicle shall not charge any fee or require
32 compensation for providing access to the vehicle or for the installation
33 of the certified ignition interlock device OR THE SPEED INHIBITING DEVICE.

34 C. The owner or the owner's spouse if the vehicle is released to
35 the owner's spouse is responsible for paying all immobilization, towing
36 and storage charges related to the immobilization or impoundment of the
37 vehicle and any administrative charges established pursuant to section
38 28-3513, unless the vehicle is stolen and the theft was reported to the
39 appropriate law enforcement agency. If the vehicle is stolen and the
40 theft was reported to the appropriate law enforcement agency, the operator
41 of the vehicle at the time of immobilization or impoundment is responsible
42 for all immobilization, towing, storage and administrative charges.

43 D. Before the end of the immobilization or impoundment period, the
44 immobilizing or impounding agency shall release a vehicle to a person,
45 other than the owner, identified on the department's record as having an
46 interest in the vehicle immediately before the immobilization or
47 impoundment if all of the following conditions are met:

1 1. The person is either of the following:

2 (a) In the business of renting motor vehicles without drivers and
3 the vehicle is registered pursuant to section 28-2166.

4 (b) A motor vehicle dealer, bank, credit union or acceptance
5 corporation or any other licensed financial institution legally operating
6 in this state or is another person who is not the owner and who holds a
7 security interest in the vehicle immediately before the immobilization or
8 impoundment.

9 2. The person pays all immobilization, towing and storage charges
10 related to the immobilization or impoundment of the vehicle and any
11 administrative charges established pursuant to section 28-3513 unless the
12 vehicle is stolen and the theft was reported to the appropriate law
13 enforcement agency. If the vehicle is stolen and the theft was reported
14 to the appropriate law enforcement agency, the operator of the vehicle at
15 the time of immobilization or impoundment is responsible for all
16 immobilization, towing, storage and administrative charges.

17 3. The person presents foreclosure documents or an affidavit of
18 repossession of the vehicle.

19 4. The person requesting release of the vehicle was not the person
20 driving the vehicle at the time of removal and immobilization or
21 impoundment.

22 E. Before a person described in subsection D of this section
23 releases the vehicle to the owner who was operating the vehicle at the
24 time of removal and immobilization or impoundment, the person described in
25 subsection D of this section shall require the owner to present and shall
26 retain for a period of at least three years from the date of releasing the
27 vehicle a copy of all of the following:

28 1. A driver license issued by this state or the owner's or owner's
29 agent's state of domicile.

30 2. A current vehicle registration or a valid salvage or dismantle
31 certificate of title.

32 3. Evidence that the vehicle is in compliance with the financial
33 responsibility requirements of chapter 9, article 4 of this title.

34 F. The person described in subsection D of this section may require
35 the owner to pay charges that the person incurred in connection with
36 obtaining custody of the vehicle, including all immobilization, towing and
37 storage charges that are related to the immobilization or impoundment of
38 the vehicle and any administrative charges that are established pursuant
39 to section 28-3513.

40 G. A vehicle shall not be released after the end of the
41 immobilization or impoundment period unless the owner or owner's agent
42 presents all of the following to the impounding or immobilizing agency:

43 1. A valid driver license issued by this state or by the owner's or
44 owner's agent's state of domicile.

45 2. A current vehicle registration or a valid salvage or dismantle
46 certificate of title.

1 3. Evidence that the vehicle is in compliance with the financial
2 responsibility requirements of chapter 9, article 4 of this title.

3 4. If the person is required by the department to install a
4 certified ignition interlock device **OR A SPEED INHIBITING DEVICE** on the
5 vehicle, proof of installation of a functioning certified ignition
6 interlock device **OR A SPEED INHIBITING DEVICE** in the vehicle. The
7 impounding agency, storage yard, facility, person or agency having
8 physical possession of the vehicle shall allow access during normal
9 business hours to the impounded vehicle for the purpose of installing a
10 certified ignition interlock device **OR A SPEED INHIBITING DEVICE**. The
11 impounding agency, storage yard, facility, person or agency having
12 physical possession of the vehicle shall not charge any fee or require
13 compensation for providing access to the vehicle or for the installation
14 of the certified ignition interlock device **OR THE SPEED INHIBITING DEVICE**.

15 H. The storage charges relating to the impoundment of a vehicle
16 pursuant to this section shall be subject to a contractual agreement
17 between the impounding agency and a towing firm for storage services
18 pursuant to section 41-1830.51 and shall be \$25 for each day of storage,
19 including any time the vehicle remains in storage after the end of the
20 impoundment period.

21 I. The immobilizing or impounding agency shall have no lien or
22 possessory interest in a stolen vehicle if the theft was reported to the
23 appropriate law enforcement agency. The immobilizing or impounding agency
24 shall release the vehicle to the owner or person other than the owner as
25 identified in subsection D of this section even if the operator at the
26 time of immobilization or impoundment has not paid all immobilization,
27 towing, storage and administrative charges.

28 J. A person who enters into an agreement pursuant to subsection A,
29 paragraph 5 of this section and who allows another person to operate the
30 vehicle in violation of the agreement is responsible for a civil traffic
31 violation and shall pay a civil penalty of at least \$250.

32 K. A person described in subsection D, paragraph 1 of this section
33 who violates subsection E of this section is responsible for a civil
34 traffic violation and shall pay a civil penalty of at least \$250.

35 L. For the purposes of this section: ~~—~~

36 1. "Certified ignition interlock device" has the same meaning
37 prescribed in section 28-1301.

38 2. **"SPEED INHIBITING DEVICE" HAS THE SAME MEANING PRESCRIBED IN**
39 **SECTION 28-711.**

1 Sec. 5. Section 28-4848, Arizona Revised Statutes, is amended to
2 read:

3 28-4848. Access to vehicle; ignition interlock service
4 provider; speed inhibiting device manufacturer;
5 lienholder; fee prohibited; violation;
6 classification

7 A. A towing company, storage yard, facility or person that has
8 physical possession of a vehicle that was removed pursuant to section
9 9-499.05, 11-251.04 or 28-872, that was impounded pursuant to chapter 8,
10 article 9 of this title or that was abandoned shall provide access during
11 normal business hours to a person who presents evidence that the person
12 either:

13 1. Is certified by the department as an ignition interlock device
14 OR A SPEED INHIBITING DEVICE manufacturer or ignition interlock service
15 provider and requires access to the vehicle for the purpose of removing
16 the device from the vehicle.

17 2. Is listed as a lienholder on the department's records for the
18 vehicle and requires access to the vehicle for the purpose of assessing
19 the condition of the vehicle.

20 B. After complying with subsection C of this section, an ignition
21 interlock device OR A SPEED INHIBITING DEVICE manufacturer or ignition
22 interlock service provider or a lienholder who is denied access to a
23 vehicle by a towing company, storage yard, facility or person that has
24 physical possession of the vehicle may report the denial to the impounding
25 agency or a law enforcement agency that has jurisdiction in the city or
26 county in which the vehicle is being stored and may submit a written
27 request for assistance as prescribed by the impounding agency or law
28 enforcement agency to obtain access to the vehicle for the purposes
29 prescribed in this section. The impounding agency or the law enforcement
30 agency shall provide assistance to the lienholder in obtaining access to
31 the vehicle within five business days after the date the written request
32 is received by the impounding agency or law enforcement agency.

33 C. A towing company, storage yard, facility or person that has
34 physical possession of a vehicle as prescribed in subsection A of this
35 section shall provide access during normal business hours to an ignition
36 interlock device OR A SPEED INHIBITING DEVICE manufacturer or ignition
37 interlock service provider or lienholder who submits a request for access
38 to a vehicle. The request for access shall be in writing, shall contain
39 the name, address and telephone number of the person making the request
40 for access to the vehicle and either:

41 1. For a lienholder, shall include a copy of a signed contract,
42 loan agreement or credit agreement indicating the vehicle owner's name,
43 the vehicle identification number, the vehicle make and model or other
44 identifying indicia or a certified record issued by the department listing
45 the person as a lienholder.

46 2. For an ignition interlock device OR A SPEED INHIBITING DEVICE
47 manufacturer or ignition interlock service provider, shall include a copy

1 of a signed contract identifying the make and model or serial number of
2 the ignition interlock device **OR THE SPEED INHIBITING DEVICE**, the make and
3 model of the vehicle or the vehicle identification number of the vehicle
4 in which the device is installed.

5 D. If the vehicle owner does not inspect the vehicle before removal
6 of the ignition interlock device **OR THE SPEED INHIBITING DEVICE** by the
7 manufacturer or ignition interlock service provider, or has inspected the
8 vehicle and has had the opportunity to remove personal property in the
9 vehicle, a rebuttable presumption is created that damage to the vehicle
10 and any loss of personal property in the vehicle occurred while the
11 vehicle was not in the custody of the towing company, storage yard,
12 facility or person that has physical possession of the vehicle. The
13 presumption may be overcome by a preponderance of evidence to the
14 contrary.

15 E. This section does not create a cause of action or a right to
16 bring an action against a towing company, storage yard, facility or person
17 that has physical possession of the vehicle for allowing access to a
18 vehicle to a person other than the owner if the written request as
19 prescribed in this section is provided to the towing company, storage
20 yard, facility or person that has physical possession of the vehicle.

21 F. A towing company, storage yard, facility or person that has
22 physical possession of a vehicle shall not charge a fee or require or
23 request any compensation for providing access to a vehicle pursuant to
24 this section.

25 G. A person who violates this section is guilty of a class 2
26 misdemeanor.

27 Sec. 6. Effective date

28 **This act is effective from and after June 30, 2027.**

29 Enroll and engross to conform

30 Amend title to conform

QUANG H. NGUYEN

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